

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tim Markbreiter	Team: Squad #07	CCRB Case #: 202301881	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Sunday, 02/26/2023 12:00 AM	Location of Incident: Burlington (located 610 Exterior Street)	18 Mo. SOL 8/26/2024	Precinct: 44
Date/Time CV Reported Sun, 02/26/2023 12:45 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 03/06/2023 11:56 AM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. PO Yorkt Peraltadeljesus	16723	967645	044 PCT
2. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Peter Ahn	01234	948594	044 PCT
2. PO Alejandro Ruiz	05324	967675	PBMN SU PST

Officer(s)	Allegation	Investigator Recommendation
A . PO Yorkt Peraltadeljesus	Force: Police Officer Yorkt Peraltadeljesus used physical force against § 87(2)(b) [REDACTED]	A . Complainant Unavailable
B . An officer	Force: An officer used physical force against § 87(2)(b) [REDACTED]	B . Complainant Unavailable

Truncation Case Summary

Search IAs: 4

Created by: Savirtree Ramdeen on 03/06/2023

Remarks Performed a NYCityMap search. Incident occurred in the confines of the 44th Precinct.

Created by: Savirtree Ramdeen on 03/06/2023

Remarks Performed a BADS search for § 87(2)(b) from 01/01/2023 to 03/06/2023 which yielded negative results. A search was also performed for arrests made from 02/25/2023 to 02/28/2023 by the 44th Precinct. There were no arrests for § 87(2)(b)

Created by: Tim Markbreiter on 04/04/2023

Remarks Performed a DOC for NYC search, no records found

Created by: Tim Markbreiter on 04/04/2023

Remarks Performed a DOC for NYS search, no results

Contact complainant/victim IAs: 10

Contact: Comp/Victim § 87(2)(b)

Created by: Tim Markbreiter on 03/08/2023

Remarks Called § 87(2)(b), obtained from CLEAR search. Number is invalid

Contact: Comp/Victim § 87(2)(b)

Created by: Tim Markbreiter on 03/08/2023

Remarks Called § 87(2)(b) at § 87(2)(b) number obtained from IAB log, left message

Contact: Comp/Victim § 87(2)(b)

Created by: Tim Markbreiter on 03/09/2023

Remarks Called § 87(2)(b) at § 87(2)(b) left a message

Contact: Comp/Victim § 87(2)(b)

Created by: Tim Markbreiter on 03/13/2023

Remarks Called § 87(2)(b) at § 87(2)(b), call went straight to voicemail. left a message

Contact: Comp/Victim § 87(2)(b)

Created by: Tim Markbreiter on 03/15/2023

Remarks Called § 87(2)(b) at § 87(2)(b), call went straight to voicemail. left a message informing him that the investigation may not be able to proceed without obtaining a statement from him.

Contact: Comp/Victim § 87(2)(b)

Created by: Tim Markbreiter on 03/23/2023

Remarks Final please call, left voicemail at § 87(2)(b)

Contact: Comp/Victim § 87(2)(b)

Created by: Tim Markbreiter on 04/03/2023

Remarks Called § 87(2)(b), obtained from CLEAR Search and a women who spoke Spanish picked up. She indicated that did not know a § 87(2)(b)

Contact: Comp/Victim § 87(2)(b)

Created by: Tim Markbreiter on 04/03/2023

Remarks Called § 87(2)(b) obtained from CLEAR search and left a voicemail.

Contact: Comp/Victim § 87(2)(b)

Created by: Tim Markbreiter on 04/03/2023

Remarks called § 87(2)(b) obtained from CLEAR search and number appeared to invalid

Contact: Comp/Victim § 87(2)(b)

Created by: Tim Markbreiter on 04/03/2023

Remarks called § 87(2)(b) obtained from CLEAR search and the number was not in service

Letters/Correspondence IAs: 3

Document List:

1st please call to c/v/w letter to Comp/Victim § 87(2)(b) Created 03-08-2023 by Tim Markbreiter
45 and 90-day letter to Comp/Victim § 87(2)(b) Created 03-20-2023 by Tim Markbreiter
Final please call to c/v/w letter to Comp/Victim § 87(2)(b) Created 03-23-2023 by Tim Markbreiter

Letters/Correspondence IA created by: Tim Markbreiter on 03/08/2023
Remarks 1st please call letter sent to home address, no email obtained.

Letters/Correspondence IA created by: Tim Markbreiter on 03/20/2023
Remarks sent 2nd letter to § 87(2)(b)

Letters/Correspondence IA created by: Tim Markbreiter on 03/23/2023
Remarks final please call letter

Civilian Interview Scheduled IAs: 0

Civilian Interview Missed IAs: 0

Truncation Report Remarks:

The undersigned made numerous contact attempts and was unable to establish any contact with
§ 87(2)(b)

Squad No.: 7

Investigator:	<u>Tim Markbreiter</u>	<u>Inv. Tim Markbreiter</u>	<u>4/4/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:		<u>SI Chris Anderson</u>	<u>04/04/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date